# Administrative Procedures for Judge Garcia

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# Family Law – Hearing Time
# General Procedures

1. Email request for hearing time to Judge Garcia's assistant, Debbie Burch, and copy opposing counsel. These requests can be sent to burchd@jud14.flcourts.org.

2. Use Jackson County case number and style of case as your subject line.

3. If your case has attorneys on *both* sides, every non-dispositive motion filed must include a Certificate of Good Faith Conferral demonstrating that the moving party made a good faith effort to resolve the relief requested in the motion prior to seeking the Court's intervention.

4. Provide the following information in the hearing time request email:
    a. Type of petition(s)/motion(s) to be heard
    b. Actual amount of time needed for counsel to argue petition(s)/motion(s) – other than matters specified under #5.
    c. Names of attorneys/parties that will attend hearing
    d. You may attach a copy of the petition(s)/motion(s) to the email

5. For the following petitions or motions, hearings will be scheduled for a maximum of these amounts of time (without prior permission of the Court and based on unusual circumstances):

    | | |
    |---|---|
    | a. Petition/motion for temporary relief | 1 hour |
    | b. Petition/motion for child pick up | ½ hour |
    | c. Exception hearings | ½ hour |
    | d. Pretrials, case management, non-evidentiary motions | 15 min per motion |

    Final hearings can be set for one-half day or all day. Half day hearings are set from 9:00 to 12:00 or 1:30 to 4:30. All day hearings are set from 9:00 to 4:30.

6. The Court's Judicial Assistant will "reply all" to the email with available dates, times and instructions. Note that Jackson County is in the central time zone.

7. Only email the Judicial Assistant to request dates and confirm the hearing date. Do not include the Judicial Assistant in email chains between counsel and/or staff to clear dates (or anything else).

8. Do not file a notice of hearing before receiving a confirmation email from the judicial assistant confirming that the hearing has been set

9. Email the Judicial Assistant a copy of all notices for hearing once filed

10. Any motions noticed, but not specifically scheduled with the judicial assistant, will not be heard

11. Additional motions cannot be piggybacked on a previously scheduled hearing time without being cleared with the judicial assistant and opposing counsel, and provided sufficient time has been reserved. To add a motion to a previously scheduled hearing, obtain opposing counsel's consent to the addition, then email the judicial assistant about adding the motion to the hearing. The judicial assistant will confirm the addition of the motion to the hearing time. Do not prepare and file a notice of the added motion until receipt of the judicial assistant's confirmation.

12. Address: 4445 Lafayette Street. Marianna, FL 32446. There is no room number – just list as Circuit Courtroom. If the hearing is being conducted via Zoom include the Zoom instructions in any notices.

13. The Court will generally schedule all final hearings in person. All other hearings may be scheduled via Zoom upon the agreement of all parties. Contact the Judicial Assistant for Zoom contact information.

# Family Law – Final Hearing Dates

1. Do not request a case management conference to obtain final hearing dates, unless setting a multi-day final hearing

2. Email request for final hearing dates to Judge Garcia's Judicial Assistant, Debbie Burch, and copy opposing counsel. These requests can be sent to burchd@jud14.flcourts.org.

3. Use Jackson County case number and style of case as your subject line.

4. Judicial Assistant will "reply all" to the email with available dates and instructions.

5. Only email the Judicial Assistant to request dates and confirm the final date selected. Do not include the judicial assistant in email chains between counsel and/or staff to clear dates (or anything else).

6. Once the final hearing date is confirmed, the party/counsel requesting the final hearing will prepare a proposed order setting final hearing, which will contain proposed disclosure and other deadlines. Obtain opposing counsel's consent to the form of the order and deadlines included therein. If you need a form of the proposed order, contact Judge Garcia's assistant to request. Judge Garcia will enter the order upon submission.

# Family Law – Zoom Instructions

1. Counsel, parties, witnesses, court reporter and the judge will all appear via video

2. Video Zoom connection information is as follows:

   https://zoomus/j/9541598926
   Meeting ID: 954 159 8926

   Dial (for United States)
   +1 312-626-6799 and enter code 954 159 8926

3. Include Zoom instructions above in any notices for hearing

4. All counsel and parties attending a hearing do so via video, unless video is impossible

5. As a video Zoom conference hearing is a court proceeding, it is anticipated that any counsel or party attending a hearing will be properly attired as if appearing in person in court.

6. So that hearings can promptly start, please log into the Zoom video conference at least five (5) minutes before the hearing start time. The judge will admit you to the hearing from the waiting room. DO NOT disconnect from Zoom just because you may not be admitted right at the hearing time.

1. So that Judge Garcia can identify which persons in the waiting room are associated with a particular hearing, please set your Zoom user/screen name to your name or your firm's name (as opposed to a nickname or other phrase).

# Family Law – Submission of Proposed Orders

1. All proposed orders must be submitted via the 14th Judicial Circuit's e-filing portal.

2. All proposed orders must include a cover letter in .pdf format. The cover letter should indicate whether the proposed order is agreed to by opposing counsel/party or not.

3. All proposed orders must be submitted in Word format

4. All proposed orders must be in DJCMA format (see #6 & 7 below)

5. Proposed orders do not need to include the addresses or email addresses of recipients of the order at the end. A copy of the signed order will be served on all counsel/parties registered for service via the e-portal.

6. If the case involves a pro se party who is not registered to receive filings from the e-portal, the proposed order shall include as the last paragraph (before DONE AND ORDERED) the following statement:

   > Counsel who submitted this proposed order to the Court for approval is required to serve a copy of the signed order upon any person(s) not registered to receive service via the e-portal.

   Counsel receiving the served copy of an order entered is then charged with responsibility for serving a copy of the signed order on any party not registered to receive service via the e-portal. The judge's office will not mail out copies of any orders.

7. A memo with instructions on submission of proposed orders and the DJCMA format can be accessed at: Microsoft Word - Memo-Submission of Proposed Orders to Judiciary.doc (flcourts.org)

8. A video with instructions on submission of proposed orders and the DJCMA format can be accessed on the 14th Judicial Circuit website under Announcements & Notices at: Fourteenth Judicial Circuit of Florida | (flcourts.org)

9. Any proposed order not complying with the above instructions will not be entered.

# Family Law – Submission of Hearing Materials (Pleadings, Memoranda, Exhibits, Case Law)

1. Any documentation being used or relied upon at a hearing that a party wants the Court to review and consider must be submitted in advance. This includes:

    a. Exhibits
    b. Memoranda not previously filed with the clerk
    c. Copies of case law, statutes or other citations
    d. Any demonstrative aides
    e. Any other documentation that a party intends to use at the hearing

    However, additional copies of motions, memoranda already filed with the clerk or other documents which are already in the court file (unless attached to or incorporated in other filings and not easily accessible or identifiable) do not need to be submitted again prior to the hearing.

2. Exhibits will not be reviewed or considered prior to them being admitted into evidence at hearings.

3. Do not send an email with attachments or hard copies of hearing materials. All hearing materials should be submitted via Microsoft OneDrive drop box. The procedures of obtaining the drop box are:

    a. Any counsel or party that desires to provide hearing materials shall contact the judicial assistant and request a OneDrive drop box for the case. The email request shall be copied to all other counsel or parties. The judicial assistant will send out an email to all parties with a link to the drop box.
    b. Either the movant or party opposing the motion may submit documents to the drop box.
    c. Please label the documents submitted to the drop box so that they can be easily identified.
    d. If documents being submitted include exhibits for an evidentiary hearing, please premark the exhibits and identify the party intending to introduce the exhibit. Counsel should agree on the method being used to identify the exhibits (such as one side using numbers and the opposing side using letters, or using party ID before the number/letter).

4. Use of the OneDrive drop box is the only digital method to submit materials to the Court in advance of a hearing. If it is impossible to use the drop box, materials may be submitted in hard copy format, to be mailed so that the documents are received at least two (2) business days prior to the hearing.

5. DO NOT email copies of hearing documents to the judicial assistant

# Family Law – Cancellations

1. In the event of a cancellation of a hearing, please notify the Judicial Assistant as promptly as possible to open the time for other cases. Judge Garcia's Judicial Assistant can be reached at burchd@jud14.flcourts.

2. In the event of a settlement of a case set for final hearing, please notify the Judicial Assistant that the matter has settled so it can be removed from the final hearing docket, even if there are still matters remaining to be concluded (filing of signed settlement agreement, entry of final judgment, etc.). However, if a settlement is contingent upon the agreement to the form of an agreement, please wait until the language of the agreement is agreed to by all parties prior to requesting a matter be removed from the final hearing docket.

3. Notices to the Judicial Assistant of a cancellation or settlement should be sent via email.

4. Upon receipt by the Judicial Assistant of the email canceling a hearing or notifying of a settlement, the matter will be removed from the calendar, whether or not a notice of cancellation has been filed. There is no need to send a copy of a notice of cancellation to the judicial assistant. However, filing such a notice and providing such to any opposing counsel or party (especially in the case of opposing pro se parties) is considered good professionalism and courtesy.

# Judge Garcia's Criminal Division Policies And Procedures

The Rues of Judicial Administration require the trial court to monitor and manage its docket to achieve the goals of a speedy, just and inexpensive resolution of criminal cases. In furtherance of these goals, this information is provided for the benefit of attorneys and parties appearing before Judge Garcia. The following policies and procedures are implemented for that purpose.

## Presence of Defendants

A defendant's presence is required at **ALL HEARINGS** unless previously waived by the Court or by Court order. However, counsel is authorized to waive the appearance of their clients for routine pretrial conferences in cases where the defendant is out of custody under most circumstances.

Defendants who are court ordered to undergo random urinalysis testing as a condition of their bond or release **MAY NOT** have their presence waived by counsel unless approved by the Court. The Court will consider requests on a case-by-case basis.

## Pretrial Conferences

Counsel for both the State and Defense shall have communicated with one another prior to pretrial court dates with an in person visit, phone call, or email. As has historically been the practice in this circuit, Defense counsel should initiate this communication unless previously initiated by the State. During pretrial dates counsel shall update the Court as to the status of the case which includes but is not limited to the following:

1. Any plea offers that have been made by the State and relayed to the Defendant.
2. The status of discovery.
3. Any motions anticipated at the time of the pretrial.
4. Whether depositions are required and when they are set. The parties shall have coordinated or attempted to coordinate a set date for these depositions and inform the Court as to this date. If no firm date as to depositions has been set by the second pretrial date, the parties will be required to bring their calendars to court to coordinate a date certain when depositions will be completed.
5. Any other matters that the Court should consider to encourage the resolution of the case.

The Court will consider motions to continue pretrials prior to the established pretrial date on a case-by-case basis.